

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

SENATE BILL NO. 2217
(Senator Cleary)

AN ACT to create and enact a new section to chapter 43-20 and a new section to chapter 43-28 of the North Dakota Century Code, relating to volunteer licenses; and to amend and reenact sections 43-20-01.1, 43-20-01.2, 43-20-01.3, 43-20-01.4, 43-20-03, 43-20-05, 43-20-12, 43-20-12.3, 43-20-13, 43-20-13.1, and 43-20-13.2, subsection 6 of section 43-28-02, section 43-28-03, subsection 5 of section 43-28-04, sections 43-28-05, 43-28-06, 43-28-08, 43-28-11, 43-28-13, 43-28-15, 43-28-16.2, and 43-28-18, subsection 1 of section 43-28-18.1, and sections 43-28-18.2 and 43-28-18.3 of the North Dakota Century Code, relating to the licensing and practice of dental hygienists and dentists, and the board of dental examiners.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Section 43-20-01.1 of the North Dakota Century Code is amended and reenacted as follows:

43-20-01.1. Definitions.

As used in this chapter and chapter 43-28, unless the context otherwise requires:

1. "Dental anesthesia assistant" means an individual authorized to perform anesthesia-related duties under the supervision of a dentist established by rule and does not include individuals issued a permit by the board for the application of local anesthetic, such as block or infiltration anesthesia.
2. "Dental assistant" means an individual who provides dental assistance under the supervision of a dentist and within the scope of practice established by rule and section 43-20-13.
- 2-3. "Dental hygienist" means an individual licensed to practice dental hygiene.
- 3-4. "Qualified dental assistant" means an individual registered as a qualified dental assistant to provide dental assistance as established by rule.
5. "Qualified dental assistant limited radiology registrant" means an individual registered with the board as a qualified dental assistant limited radiology registrant who may carry out dental assisting duties, including taking radiographs, under the supervision of a dentist as established by rule.
- 4-6. "Registered dental assistant" means an individual registered as a registered dental assistant to provide dental assistance as established by rule.

SECTION 2. AMENDMENT. Section 43-20-01.2 of the North Dakota Century Code is amended and reenacted as follows:

43-20-01.2. Dental hygienist licensing.

1. An individual seeking a license, registration, permit, credential, or endorsement related to the practice of dental hygiene in this state shall apply to the executive director of the board on forms prescribed by the board.
2. The application must be verified:
 - a. Be verified under oath to the effect that all of the statements contained in the application are true to the applicant's own knowledge, and must be received by the executive

~~director of the board at least thirty days before the board meeting at which the application is considered. The applicant shall enclose with the application;~~

- ~~b. Contain a recent autographed picture of the applicant; and an~~
- ~~c. Include the application fee established by the board by rule.~~
- 3. The board may, by rule, create or modify fees associated with any license, registration, permit, credential, or endorsement. A fee created or modified under this section is not a new fee for purposes of subsection 7 of section 54-35-27.
- 4. The board may grant a license to practice dental hygiene to an applicant who has met all of the following requirements:
 - 1. a. The applicant is a graduate of a dental hygiene school accredited by the American dental association's commission on dental accreditation.
 - 2. b. The applicant has passed an examination administered by the joint commission on national dental examinations.
 - 3. c. The applicant has passed a clinical competency examination administered by a regional dental testing service or a licensing jurisdiction approved by the board by rule.
 - 4. d. The applicant has passed, within one year of making application, a written examination on the laws and rules governing the practice of dentistry in this state.
 - 5. e. Grounds for denial of the application under section 43-20-05 do not exist.
 - 6. f. The applicant has met any requirement for licensure established by the board by rule.

SECTION 3. AMENDMENT. Section 43-20-01.3 of the North Dakota Century Code is amended and reenacted as follows:

43-20-01.3. Licensure by credential review.

Applications for licensure to practice dental hygiene by credential review must be made on forms provided by the board ~~and submitted thirty days before the examination administered by the board.~~ The board may issue a license and certificate of registration to practice dental hygiene to an applicant who meets all of the following requirements:

- 1. The applicant, for at least three years immediately preceding application, has been licensed in good standing and has been actively practicing dental hygiene in another jurisdiction where the requirements are at least substantially equivalent to those of this state.
- 2. Grounds for denial of the application under section 43-20-05 do not exist.
- 3. The applicant has paid to the board the fee established by the board by rule.
- 4. The applicant has delivered to the board a certificate from the examining or licensing board of every jurisdiction in which the individual is licensed to practice, certifying that the individual is a licensed and registered dental hygienist in good standing in that jurisdiction.
- 5. The applicant has passed a written examination on the laws and rules governing the practice of dentistry in this state administered by the board at a meeting.
- 6. The applicant has met any requirement for licensure established by the board by rule.

SECTION 4. AMENDMENT. Section 43-20-01.4 of the North Dakota Century Code is amended and reenacted as follows:

43-20-01.4. License renewal - Audit.

1. Dental hygienist licenses expire on December thirty-first of every odd-numbered year.
2. Licenses may be renewed by December thirty-first of the odd-numbered year by submitting a renewal application, a renewal fee established by the board by rule, and proof of completion of the continuing education requirements established by the board by rule, provided ~~the dental hygienist's license is not revoked or grounds for denial under section 43-20-05 do not exist as~~ determined by the board.
3. If the renewal application, renewal fee, and proof of completion of continuing education are not received by December thirty-first of the odd-numbered year, the license expires and the dental hygienist individual may not practice dental hygiene.
4. Within sixty days after December thirty-first of the odd-numbered year, an expired license may be renewed ~~by submitting if the individual submits~~ the renewal application, renewal fee, proof of completion of continuing education, and a late fee established by the board by rule.
5. Between sixty-one days and one year after December thirty-first of the odd-numbered year, an expired license may be renewed if the individual submits a renewal application, pays the renewal fee, pays an amount equal to twice the late renewal fee, and submits other documentation sought by the board confirming the individual retains the skills necessary to practice.
6. If the renewal application, renewal fee, proof of completion of continuing education, and late fee are not received within ~~sixty days~~ one year after December thirty-first of the odd-numbered year, the license may not be renewed, and the dental hygienist individual must apply for and meet the requirements for licensure to be granted a license.
- 6.7. The board may extend the renewal deadlines for a ~~dental hygienist~~ an individual providing proof of medical or other hardship rendering the dental hygienist individual unable to meet the deadline.
- 7.8. The board may audit continuing education credits. Each licensee shall maintain certificates or records of continuing education activities for three years. Upon receiving notice of an audit from the board, a licensee shall provide satisfactory documentation of attendance at, or participation in, the continuing education activities listed on the licensee's continuing education form. Failure to comply with the audit is grounds for nonrenewal of or disciplinary action against the license.

SECTION 5. A new section to chapter 43-20 of the North Dakota Century Code is created and enacted as follows:

Volunteer license.

The board may establish rules governing the issuance of a volunteer license to practice dental hygiene to an individual previously licensed in this state or an individual who holds a license, in good standing, to practice dental hygiene issued by another state.

SECTION 6. AMENDMENT. Section 43-20-03 of the North Dakota Century Code is amended and reenacted as follows:

43-20-03. Dental hygienists - Practice by.

1. As used in this chapter, "dental hygiene" and the practice thereof means the removal of accumulated matter from the natural and restored surfaces of teeth and from restorations in the human mouth, the polishing of such surfaces, and the topical application of drugs to the surface tissues of the mouth and to the surface of teeth if ~~such acts are performed under the direct, indirect, or general supervision of a licensed dentist. General supervision may be used~~

~~if the procedures are authorized in advance by the supervising dentist, except procedures which may only be used under direct supervision as established by the board by rule.~~

2. Only a person licensed as a dental hygienist may be referred to as a dental hygienist.
Additional
3. The board may outline by rule additional tasks permitted to be performed by licensed dental hygienists ~~may be outlined by the board of dental examiners by appropriate rules.~~

SECTION 7. AMENDMENT. Section 43-20-05 of the North Dakota Century Code is amended and reenacted as follows:

43-20-05. Licenses and registrations - Denial and discipline.

1. The board may deny an application for or take disciplinary action against a dental hygienist's license or a registered or qualified dental assistant's registration, upon any one or more of the following grounds:
 1. a. Gross immorality or unprofessional conduct, which includes knowingly failing to comply with commonly accepted national infection control guidelines and standards.
 2. b. Failure, neglect, or refusal to renew a license biennially.
 3. c. Nonobservance or violation of this chapter, or of any board rule adopted under this chapter.
 4. d. Gross incompetency in the practice of dental hygiene.
 5. e. Conviction of an offense determined by the board to have a direct bearing on the individual's ability to serve the public as a dental hygienist or a registered or qualified dental assistant, or the board determines, following conviction for any offense, that the individual is not sufficiently rehabilitated under section 12.1-33-02.1.
 6. f. Been adjudged mentally ill and not judicially restored by the regularly constituted authorities, or having a physical or mental disability materially affecting the ability to carry out the duties within the scope of practice in a competent manner.
 7. ~~Abused, is dependent on, or addicted to the~~
 - g. The use of alcohol or drugs to such a degree as to interfere with the licensee's ability to safely perform the duties within the scope of practice for dental hygiene or dental assisting.
 8. h. Engaged in fraud or deceit in obtaining a dental hygiene license or dental assisting registration.
 9. i. Disclosed confidential information.
 10. j. Received a fee for the referral of patients to a dentist or dental hygienist.
 11. k. Used unethical measures to draw dental patronage from the practice of another licensee.
 12. l. Fraudulently prescribed or dispensed drugs or medications.
 13. m. Knowingly submitted misleading, deceptive, untrue, or fraudulent information on a claim form, bill, or statement to a third party.
 14. n. Advised or directed patients to dental laboratories or dental laboratory technicians for a dental service or advised or directed patients to deal directly with laboratories or dental laboratory technicians.

- 15. o. Violated the code of ethics adopted by the board by rule.
 - 16. p. Had a registration or license suspended, revoked, or disciplined in another jurisdiction.
 - 17. q. Failed to report to the board in writing within sixty days a violation of this chapter or chapter 43-28.
 - 18. r. Practiced outside the scope of practice established by the board by rules and this chapter.
 - s. Failed to fully and completely cooperate in any investigation initiated by the board, including the failure to promptly provide any information legally sought by the board, its investigative panel, its investigators, or its authorized agents.
 - t. Noncompliance with the terms of a program contracted for under section 43-28-06.
2. The procedure ~~to be followed~~ for taking disciplinary action under this section must be the same as the ~~procedure~~ required by section 43-28-18.2.

SECTION 8. AMENDMENT. Section 43-20-12 of the North Dakota Century Code is amended and reenacted as follows:

43-20-12. Dental hygienist - Scope of permitted practice.

A licensed dentist may delegate to a competent dental hygienist those procedures over which the dentist exercises full responsibility, except those procedures that require professional judgment and skill ~~such as in~~ diagnosis and, treatment planning, or the cutting of hard or soft tissue, ~~or any intraoral procedure which would lead to the fabrication of any appliance that, when worn by the patient, would come in direct contact with hard or soft tissue and which could result in tissue irritation or injury.~~ The board of dental examiners may adopt rules governing the scope of practice of dental hygienists.

SECTION 9. AMENDMENT. Section 43-20-12.3 of the North Dakota Century Code is amended and reenacted as follows:

43-20-12.3. Supervised administration of anesthesialocal anesthetic - Board rules.

A licensed dentist may delegate to a dental hygienist licensed by the board the administration of block and infiltration anesthesia to a patient ~~who is at least eighteen years old.~~ The dental hygienist administering local anesthetic under this section must be under the direct supervision of a dentist, as established by rule, and the dental hygienist must complete the educational requirements as required by the commission on dental accreditation and approved by the board. The board shall adopt rules to implement this section.

SECTION 10. AMENDMENT. Section 43-20-13 of the North Dakota Century Code is amended and reenacted as follows:

43-20-13. Dental assistant - Scope of permitted practice.

A dental assistant is an auxiliary to the practice of dentistry. To the extent applicable and to the extent they are not inconsistent with this chapter, the requirements and rules adopted by the board of dental examiners under chapter 43-28 apply to the practice of dental assistants. A dentist may delegate to a dental assistant who is under that dentist's ~~direct, indirect, or general~~ supervision procedures over which the dentist exercises full responsibility as provided by rules adopted by the board ~~of dental examiners.~~

SECTION 11. AMENDMENT. Section 43-20-13.1 of the North Dakota Century Code is amended and reenacted as follows:

43-20-13.1. Registration renewal - Continuing education audit.

1. ~~All registrations of registered and qualified dental assistants~~assistant registrations, including any permits, credentials, or endorsements issued by the board, expire on December thirty-first of every even-numbered year.
2. A registration may be renewed by submitting a renewal application, renewal fee established by the board by rule, and proof of completion of the continuing education requirements established by the board by rule, provided the registration is not revoked or grounds for denial under section 43-20-05 do not exist.
3. If the renewal application, renewal fee, and proof of completion of continuing education are not received by December thirty-first of the even-numbered year, the registration expires and the ~~registered or qualified dental assistant~~individual may not practice as a registered or qualified dental assistant.
4. Within sixty days after December thirty-first of the even-numbered year, an expired registration may be renewed by submitting the renewal application, renewal fee, proof of completion of continuing education, and a late fee established by the board by rule.
5. Between sixty-one days and one year after December thirty-first of the odd-numbered year, an expired license may be renewed if the individual submits a renewal application, pays the renewal fee, pays an amount equal to twice the late renewal fee, and submits other documentation sought by the board confirming the individual retains the skills necessary to practice.
6. If the renewal application, renewal fee, proof of completion of continuing education, and late fee are not received within ~~sixty days~~one year after December thirty-first of the even-numbered year, the registration may not be renewed, and the ~~registered or qualified dental assistant~~individual must apply for and meet the requirements for registration to be granted registration.
- 6.7. The board may extend the renewal deadline for a ~~registered or qualified dental assistant~~an individual providing proof of medical or other hardship rendering the ~~registered or qualified dental assistant~~individual unable to meet the deadline.
8. The board may audit continuing education credits. Each dental assistant who is required to be registered with the board shall maintain certificates or records of continuing education activities for three years. Upon receiving notice of an audit from the board, a dental assistant shall provide satisfactory documentation of attendance at, or participation in, the continuing education activities listed on the dental assistant's continuing education form. Failure to comply with the audit is grounds for nonrenewal or disciplinary action against the dental assistant.

SECTION 12. AMENDMENT. Section 43-20-13.2 of the North Dakota Century Code is amended and reenacted as follows:

43-20-13.2. Registered and qualified dental assistant registration**Registration of dental assistants.**

To be registered as a registered ~~or dental assistant~~, qualified dental assistant, dental anesthesia assistant, qualified dental assistant limited radiology registrant, or for any individual to be issued a permit, credential, or endorsement by the board related to dental assisting, an individual shall apply and meet the requirements established by the board by rule.

SECTION 13. AMENDMENT. Subsection 6 of section 43-28-02 of the North Dakota Century Code is amended and reenacted as follows:

6. To a registered nurse, licensed practical nurse, ~~registered~~ dental hygienist, or ~~registered~~ dental assistant who is applying topical fluoride varnish to an individual and is acting under the direct or general supervision of a physician or licensed dentist if the registered nurse, licensed practical nurse, ~~registered~~ dental hygienist, or ~~registered~~ dental assistant has successfully completed a training program approved by the board.

SECTION 14. AMENDMENT. Section 43-28-03 of the North Dakota Century Code is amended and reenacted as follows:

43-28-03. State board of dental examiners - Members - Appointment - Terms of office - Oath - Vacancies.

1. The state board of dental examiners consists of nine members appointed by the governor. The membership of the board must include ~~six~~:
 - a. Six dentist members, at least one of whom is a board-eligible or board-certified oral and maxillofacial surgeon; ~~one~~
 - b. One dental hygienist member; ~~one~~
 - c. One dental assistant member; and ~~one~~
 - d. One independent consumer member.
2. Appointment to the board is for a term of five years, with terms of office arranged so no more than two terms expire on March sixteenth of each year. Each member of the board shall hold office until a successor is appointed and qualified. An individual appointed to the board qualifies by taking the oath required of civil officers.
3. A member may not serve more than ~~ten years or two~~ full and consecutive 5-year appointed terms of office. An appointment to fill a vacancy occurring for reasons other than the expiration of a term may be made only for the remainder of the unexpired term, and does not constitute a full term or apply to term limits.
4. If a member of the board is absent from two consecutive regular meetings, the board may declare a vacancy to exist.
5. All vacancies on the board must be filled by the governor by appointment.

SECTION 15. AMENDMENT. Subsection 5 of section 43-28-04 of the North Dakota Century Code is amended and reenacted as follows:

5. The dental hygienist, dental assistant, and independent consumer member of the board shall exercise full voting privileges in all areas except that the dental hygienist may not participate in the clinical examination of dentists for licensure and the dental assistant and independent consumer member may not participate in the clinical examination of dentists or hygienists for licensure. Each appointee must continue to meet the criteria for appointment for the duration of the appointee's term.

SECTION 16. AMENDMENT. Section 43-28-05 of the North Dakota Century Code is amended and reenacted as follows:

43-28-05. Meeting of board - Officers - Bond - Compensation of members - Quorum.

1. The board shall hold a regular annual meeting at a place designated by the board and special meetings when necessary. ~~At the regular meeting of the board, the members~~The board shall elect from ~~their number a~~ its members:
 - a. A president, a member who has at least two years remaining on that member's term;

- ~~b. A president-elect, a member who has at least three years remaining on that member's term,; and a~~
 - ~~c. A secretary-treasurer. The executive director shall furnish a bond in the amount fixed by the board.~~
- 2. Each member of the board shall receive as compensation for each day actually engaged in the duties of the office per diem at a rate established by the board and reimbursement for expenses as provided in section 54-06-09 while attending meetings of the board. The executive director may be paid an annual salary in an amount determined by the board. ~~Four members of the board constitute a quorum but a smaller number may adjourn from time to time.~~

SECTION 17. AMENDMENT. Section 43-28-06 of the North Dakota Century Code is amended and reenacted as follows:

43-28-06. Powers of board.

The board may:

1. Adopt and enforce reasonable rules to govern its proceedings and to carry out this chapter.
2. Examine applicants for licenses, or registration to practice dentistry, dental hygiene, or dental assisting in this state, either by direct examination or by accepting the results of national or regional dental testing services in which the board participates or which the board recognizes.
3. Issue, suspend, revoke, limit, cancel, restrict, and reinstate licenses registrations, permits, credentials, or endorsements related to the practice of dentistry, dental assisting, or dental hygiene and the biennial certificates of registration upon any grounds authorized by this chapter or rules adopted by the board.
4. Issue subpoenas to require the attendance of witnesses and the production of documentary evidence and may administer oaths. Any member or executive officer of the board may administer oaths to witnesses, or issue subpoenas, ~~but all subpoenas so issued must be attested by the secretary who shall affix the seal of the board thereto.~~
5. Employ and compensate an executive director, attorneys, investigative staff, and clerical assistants and may perform any other duties imposed upon the board by this chapter.
6. Establish minimum continuing professional education requirements for dentists, dental hygienists, and dental assistants.
7. Enter an agreement with the same professional organization with which the North Dakota board of medicine has entered an agreement under subsection 6 of section 43-17-07.1 and adopt rules to establish an alternative to discipline program through that contract. Records of an alternative to discipline program, including the identity of a licensee participating in the alternative to discipline program, are exempt records under section 44-04-17.1. Records of an alternative to discipline program may be disclosed by the board if the board determines disclosure of the records is necessary to protect health, safety, and welfare of the public, if ordered by a court of competent jurisdiction, or if otherwise determined by the board. Fees assessed by rule for this program are not new fees as contemplated by subsection 7 of section 54-35-27.
8. Impose fines, not to exceed five thousand dollars for each violation of section 43-28-18.2. All fines collected by the board must be deposited in the general fund.

SECTION 18. AMENDMENT. Section 43-28-08 of the North Dakota Century Code is amended and reenacted as follows:

43-28-08. Records of board - Use as evidence.

The board shall keep full and complete minutes of its proceedings and of its receipts and disbursements and a full and accurate list of all persons licensed and registered by it. ~~The records of the board, together with the list of all licensed and registered dentists, are public records and must be open to public inspection at all reasonable times. Such records, or a transcript of the same or any part thereof, under the seal of the board, duly certified by its secretary-treasurer, are competent evidence of the facts therein stated. A certificate of the secretary-treasurer under the seal of the board stating that any person is or is not a duly licensed and registered dentist is prima facie evidence of such fact~~the board, and shall maintain all records in full compliance with chapter 44-04.

SECTION 19. A new section to chapter 43-28 of the North Dakota Century Code is created and enacted as follows:

Volunteer license.

The board may establish rules governing the issuance of a volunteer license to practice dentistry to an individual previously licensed in this state or an individual who holds a license, in good standing, to practice dentistry issued by another state.

SECTION 20. AMENDMENT. Section 43-28-11 of the North Dakota Century Code is amended and reenacted as follows:

43-28-11. Application - Fees.

1. An individual seeking to practice dentistry in this state shall apply to the executive director of the board on forms prescribed by the board a license, registration, permit, credential, or endorsement related to the practice of dentistry, shall apply to the executive director on forms prescribed by the board.
2. The application must be verified:
 - a. Be verified under oath to the effect that all of the statements contained in the application are true of to the applicant's own knowledge, and must be received by the executive director of the board at least thirty days before the board meeting at which it is considered. The applicant shall enclose with the application;
 - b. Contain a recent autographed picture of the applicant; and an
 - c. Include the application fee as determined established by the board by rule.
3. The board may, by rule, create or modify fees associated with any license, registration, permit, credential, or renewal. A fee created or modified under this section is not a new fee for purposes of subsection 7 of section 54-35-27.

SECTION 21. AMENDMENT. Section 43-28-13 of the North Dakota Century Code is amended and reenacted as follows:

43-28-13. When re-examination required.

~~Any dentist~~An individual who does not undertake the actual practice of dentistry within five years from the date of the ~~dentist's~~individual's license and registration, ~~or any holder of any privilege related to the practice of dentistry~~ shall, before engaging in the practice of dentistry in this state, notify the board of the intention in writing. The board, after a full investigation, may re-examine the ~~dentist~~individual as to the ~~dentist's~~individual's qualifications to practice dentistry in this state, if the board deems such re-examination necessary. The failure of the ~~dentist~~individual to give the written notice to the board before engaging in the practice of dentistry in this state is grounds for disciplinary action.

SECTION 22. AMENDMENT. Section 43-28-15 of the North Dakota Century Code is amended and reenacted as follows:

43-28-15. Licensure by credential review.

1. The board may issue a license and certificate of registration to practice dentistry in this state to an applicant who meets all of the following requirements:
4.
 - a. The applicant, for at least five years immediately preceding application, has been licensed in good standing and has been actively practicing dentistry in another jurisdiction where the requirements are at least substantially equivalent to those of this state;
 2. b. Grounds for denial of the application under section 43-28-18 do not exist;
 3. c. The applicant pays to the board the fee determined by the board by rule;
 4. d. The applicant delivers to the board a certificate from the examining or licensing board of every jurisdiction in which the individual is practicing or is licensed to practice, certifying that the individual is a licensed and registered dentist in good standing in that jurisdiction;
 5. e. The applicant passes a written examination on the laws and rules governing the practice of dentistry in this state administered by the board at a meeting; and
 6. f. The applicant meets any requirement for licensure established by the board by rule.
2. The board may issue a license and certificate of registration to practice dentistry in this state to an applicant who is in good standing under the laws of another jurisdiction, has passed a hand skills examination approved by the board, and possesses qualifications, education, and experience substantially similar to the requirements in subsection 1.

SECTION 23. AMENDMENT. Section 43-28-16.2 of the North Dakota Century Code is amended and reenacted as follows:

43-28-16.2. License renewals.

1. Licenses expire on December thirty-first of every odd-numbered year.
2. Licenses may be renewed by December thirty-first of the odd-numbered year by submitting a renewal application, a renewal fee established by the board by rule, and proof of completion of the continuing education requirements established by the board by rule, provided ~~the dentist's license is not revoked or~~ grounds for denial under section 43-28-18 do not exist as determined by the board.
3. If the renewal application, renewal fee, and proof of completion of continuing education are not received by December thirty-first of the odd-numbered year, the license expires and the ~~dentist~~individual may not practice dentistry.
4. Within sixty days after December thirty-first of the odd-numbered year, an expired license may be renewed by submitting the renewal application, renewal fee, proof of completion of continuing education, and a late fee established by the board by rule.
5. Between sixty-one days and one year after December thirty-first of the odd-numbered year, an expired license may be renewed if the individual submits a renewal application, pays the renewal fee, pays an amount equal to twice the late renewal fee, and submits other documentation sought by the board confirming the individual retains the skills necessary to practice.

6. If the renewal application, renewal fee, proof of completion of continuing education, and late fee are not received within ~~sixty days~~one year after December thirty-first of the odd-numbered year, the license may not be renewed, and the ~~dentist~~individual must apply for and meet the requirements for licensure to be granted a license.
- 6.7. The board may extend the renewal deadlines for a ~~dentist~~an individual providing proof of medical or other hardship rendering the ~~dentist~~individual unable to meet the deadline.

SECTION 24. AMENDMENT. Section 43-28-18 of the North Dakota Century Code is amended and reenacted as follows:

43-28-18. Grounds for denial of or disciplinary action against license and certificate.

The board may deny an application or take disciplinary action against the license and the certificate of registration of any applicant or dentist who has:

1. Engaged in dishonorable, unprofessional, or immoral conduct.
2. Been convicted of an offense determined by the board to have a direct bearing upon the individual's ability to serve the public as a dentist, or the board determines, following conviction for any offense, that the individual is not sufficiently rehabilitated under section 12.1-33-02.1.
3. Been adjudged mentally ill and not judicially restored by the regularly constituted authorities or have a physical or mental disability materially affecting the ability to carry out the duties within the scope of practice in a competent manner.
4. ~~Abused, is dependent on, or addicted to the use of~~Used alcohol or drugs to such a degree as to interfere with the licensee's ability to safely perform the duties within the scope of practice for dentistry.
5. Employed or permitted an unlicensed individual to practice dentistry in the office under the dentist's control.
6. Been grossly negligent in the practice of dentistry.
7. Engaged in fraud or deceit in obtaining the license or in the practice of dentistry.
8. Disclosed confidential information.
9. Shared any professional fee with anyone or paid anyone for sending or referring patients to the dentist. However, this does not prohibit dentists from practicing in a partnership and sharing one another's professional fees, nor prohibit a dentist from employing any other dentist or dental hygienist.
10. Used any advertising of any character tending to mislead and deceive the public, including advertising the public could reasonably interpret as indicating the dentist is qualified to practice a dental specialty, if the practice of that dental specialty would be outside the scope of practice for which the dentist is qualified to practice.
11. Failed to meet minimum standards of professional competence.
12. Prescribed, administered, or dispensed medications for reasons or conditions outside the scope of dental practice.
13. Fraudulently, carelessly, negligently, or inappropriately prescribed drugs or medications.
14. Directed others to perform acts or provide dental services for which they were not licensed or qualified or were prohibited by law or rule from performing or providing.

15. Submitted fraudulent insurance claims.
16. Made any false, fraudulent, deceptive, or untrue statements in connection with the practice of dentistry, or in an application for an examination to obtain a license to practice dentistry.
17. Made any false representations that the individual is the holder of a license or certificate of registration to practice dentistry.
18. Made any false claims that the individual is a graduate of a dental college or the holder of any diploma or degree from a dental college.
19. Failed to comply with commonly accepted national infection control guidelines and standards.
20. Abandoned the dentist's practice in violation of rules adopted by the board.
21. Failed to report to the board as required under section 43-28-18.1.
22. Failed to practice within the scope of that dentist's education or advanced training as recognized by the board, the American dental association, or other professional entity recognized by the board.
23. Failed to release, within a reasonable time, copies of dental or medical records requested by a patient of record or violated section 23-12-14, or failure to provide a complying written statement to a patient, the board, or other requester. Dental records may include any document, charting, study models, doctor's notations, billing information, insurance document or combination of documents that pertains to a patient's medical history, diagnosis, prognosis, or medical condition, which is generated and maintained in the process of the patient's dental health care treatment. Within ten days after receipt of request, a dentist who fails to release patient records shall provide a written statement, detailing the cause of delay and an estimation of when records will be produced, to the patient or requester.
24. Advised or directed patients to dental laboratories or dental laboratory technicians for any dental service or advised or directed patients to deal directly with laboratories or dental laboratory technicians without first having furnished the dental laboratory or dental laboratory technician a written prescription.
25. Worked or cooperated with dental laboratories that advertise for public patronage by delegating work to such laboratories in return for the referral of laboratory patrons for professional services.
26. Used the services of a person or entity not licensed to practice dentistry in this state, or constructed, altered, repaired, or duplicated a denture, plate, partial plate, bridge, splint, or orthodontic or prosthetic appliance, except as provided by rule adopted by the board.
27. Violated the code of ethics adopted by the board by rule.
28. Violated this chapter or rules adopted by the board.
29. Had the applicant's or dentist's license suspended, revoked, or disciplined in another jurisdiction.
30. Maintained a lack of appropriate documentation in dental records for diagnosis, testing, or treatment of patients.
31. Failed to fully and completely cooperate in an investigation by the board, including failure to promptly provide legally sought information to the board or any investigative panel, investigator, or authorized agent of the board.
32. Failed to comply with the terms of a program contracted for under section 43-28-06.

SECTION 25. AMENDMENT. Subsection 1 of section 43-28-18.1 of the North Dakota Century Code is amended and reenacted as follows:

1. A dentist shall report to the board in writing within sixty days of the event any illegal, unethical, or errant behavior or conduct of the dentist, including the following events, proceedings, or formal or informal actions:
 - a. A dental malpractice judgment or malpractice settlement or a final judgment by a court in favor of any party and against the licensee.
 - b. A final disposition regarding the surrender of a license, or adverse action taken against a license by a licensing agency in another state, territory, or country; a governmental agency; a law enforcement agency; or a court for an act or conduct that would constitute grounds for discipline under this chapter.
 - c. A mortality or other incident occurring in an outpatient facility of the dentist which results in temporary or permanent physical or mental injury requiring hospitalization of the patient during or as a direct result of a dental procedure or related use of general anesthesia, deep sedation, conscious sedation with a parenteral drug, or enteral sedation.
 - d. An arrest by a law enforcement officer or criminal charges filed by a prosecutor.

SECTION 26. AMENDMENT. Section 43-28-18.2 of the North Dakota Century Code is amended and reenacted as follows:

43-28-18.2. Disciplinary procedure.

1. A person may file a written and signed complaint with the board alleging a dentist engaged in conduct identified as grounds for disciplinary action under section 43-28-18. The board may also initiate a complaint and investigation on the board's motion.
2. The board may direct a complaint committee to investigate a complaint and recommend whether the board should initiate a disciplinary action against the dentist.
3. The board or complaint committee shall notify the dentist of the complaint, and require a written response from the dentist. The board or complaint committee may examine and copy records, including patient records, examine witnesses, obtain expert opinions, require the dentist to be physically or mentally examined, or both, by qualified professionals selected by the board, and take any other action necessary to investigate the complaint. A request by the board or complaint committee ~~is authorized~~ provides sufficient authorization to disclose patient information and records to the board or complaint committee. Patient information and records disclosed to the board or complaint committee are confidential. The dentist shall cooperate with the board or the complaint committee in the investigation, including responding promptly, truthfully, and completely to a request or requirement.
4. The complaint, response, and any record received by the board ~~in investigating the~~ during the investigation of a complaint or other allegation are exempt records, as defined in section 44-04-17.1, until the board determines to proceed with a disciplinary action.
5. The board shall determine if there is a reasonable basis to believe the dentist engaged in conduct identified as grounds for disciplinary action under section 43-28-18. If the board determines there is not a reasonable basis to believe, the board shall notify the complainant and the dentist. If the board determines there is a reasonable basis to believe, the board shall proceed with a disciplinary action in accordance with chapter 28-32.
6. The board, at any time, may offer or accept a proposal for informal resolution of the complaint or disciplinary action.

7. The board may impose a fee on the dentist for all or part of the costs of an investigation or action resulting in discipline, including administrative costs, investigation costs, attorney's fees, witness fees, the cost of the office of administrative hearings' services, and court costs.
8. In any agreement, order, or decision arising out of any disciplinary investigation or action undertaken by the board, the board may direct the licensee or registrant to pay the board a sum not to exceed the reasonable and actual costs, including reasonable attorneys fees incurred by the board or investigative panels of the board in the investigation or prosecution. The board may suspend a license or registration until costs are paid to the board. Within thirty days of the issuance of an agreement, order, or decision, a licensee or registrant may challenge the reasonableness of any cost item by requesting a hearing under chapter 28-32. An administrative law judge may approve, deny, or modify any cost item, and the determination of the judge is final. The hearing must occur before the license or registration may be suspended for nonpayment.

SECTION 27. AMENDMENT. Section 43-28-18.3 of the North Dakota Century Code is amended and reenacted as follows:

43-28-18.3. Temporary suspension - Appeal.

1. When, based on verified evidence, the board determines by a clear and convincing standard that the evidence presented to the board indicates that the continued practice by the dentist would create a significant risk of serious and ongoing harm to the public while a disciplinary proceeding is pending, and that immediate suspension of the dentist's license is required to reasonably protect the public from that risk of harm, the board may order a temporary suspension ex parte. For purposes of this section, "verified evidence" means testimony taken under oath and based on personal knowledge. The board shall give prompt written notice to the dentist of the ex parte temporary suspension to the dentist, which must include a copy of the order and complaint, the date set for a full hearing on the merits of the evidence that resulted in the ex parte temporary suspension, and a specific description of the nature of the evidence, including a list of all known witnesses and a description of any documents relied upon by the board in ordering the ex parte temporary suspension which, upon request, must be made available to the dentist.
2. ~~An~~Unless the ex parte temporary suspension is otherwise terminated by the board, an ex parte temporary suspension remains in effect until a final order is issued after following a full hearing on the merits conducted under chapter 28-32 or following an appeal under this section or until the suspension is otherwise terminated by the board.
3. ~~The board shall conduct a full hearing on the merits of the allegations to determine what disciplinary action, if any, must be taken against the dentist who is the subject of the ex parte temporary suspension. That hearing must be held not later than thirty days from the issuance of the ex parte temporary suspension order or as soon as practicable as determined by the hearing officer.~~ The dentist is entitled to a continuance of the thirty-day period upon request for a period determined by the hearing officer.
4. The dentist may appeal the ex parte temporary suspension order before the full hearing. ~~For purposes of appeal, on the merits occurs. The appeal must be filed with the district court of Burleigh County. The district court shall decide whether the board acted reasonably or arbitrarily when ordering the ex parte temporary suspension. The district court shall give priority to the appeal for prompt disposition.~~
5. A dental or medical record of a patient, or other document containing personal information relating to a patient, ~~which is~~ obtained by the board is confidential.

President of the Senate

Speaker of the House

Secretary of the Senate

Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2217.

Senate Vote: Yeas 47 Nays 0 Absent 0

House Vote: Yeas 92 Nays 1 Absent 1

Secretary of the Senate

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State